

SENATE No. 1057

The Commonwealth of Massachusetts

PRESENTED BY:

Cynthia Stone Creem

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to fentanyl test strips.

PETITION OF:

NAME:

Cynthia Stone Creem

DISTRICT/ADDRESS:

Norfolk and Middlesex

SENATE No. 1057

By Ms. Creem, a petition (accompanied by bill, Senate, No. 1057) of Cynthia Stone Creem for legislation relative to fentanyl test strips. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 926 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to fentanyl test strips.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 94C of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after the word “substances”, in line 123, the
3 following words:- ; provided, however, that said testing equipment shall not include fentanyl test
4 strips or any testing equipment or device solely used, intended for use or designed to be used to
5 determine whether a substance contains fentanyl or its analogues.

6 SECTION 2. Said chapter 94C is hereby further amended by inserting after section 19F
7 the following section:-

8 Section 19G. Any person who, in good faith, provides, administers or utilizes a fentanyl
9 test strip or any testing equipment or device solely used, intended for use or designed to be used
10 to determine whether a substance contains fentanyl or its analogues shall not, as a result of the

- 11 person's acts or omissions, be subject to any criminal or civil liability or any professional
- 12 disciplinary action; provided, however, that this section shall not apply to acts of gross
- 13 negligence or willful or wanton misconduct.